

#	Case Name	Tentative
1.	DELEON VS. GASCO 2024-01417080	MOTION TO COMPEL DEPOSITION (ORAL OR WRITTEN) Defendant Rosmar Rodriguez Gasco's motion to compel deposition is DENIED. Code of Civil Procedure section 2025.450, subdivision (a) provides: "If, after service of a deposition notice, a party to the action or an officer, director, managing agent, or employee of a party, or a person designated by an organization that is a party under Section 2025.230, without having served a valid objection under Section 2025.410, fails to appear for examination, or to proceed with it, or to produce for inspection any document, electronically stored information, or tangible thing described in the deposition notice, the party giving the notice may move for an order compelling the deponent's attendance and testimony, and the production for inspection of any document, electronically stored information, or tangible thing described in the deposition notice." Defendant contends Plaintiff's deposition was originally set for 11/24/25 (Kim Decl., ¶ 3.) Plaintiff did not appear for the deposition and Plaintiff's counsel later represented to Defendant's counsel a prior communication was sent notifying defense counsel Plaintiff could not appear at the deposition (though no such communication had been provided as requested). (Kim Decl., ¶ 5.) Defendant requested a Certificate of Non-appearance. (Kim Decl., ¶ 5, Ex. 5.) On 11/24/25, 12/1/25 and 12/5/25, Defendant's counsel contacted Plaintiff's counsel regarding the non-appearance and coordinating a second deposition for Plaintiff but received no response. (Kim Decl. ¶¶ 6-8, Exs. 7-9.) On 12/8/25, Defendant served Plaintiff's counsel with an amended second deposition notice with a deposition date of 12/22/25. (Kim Decl., ¶ 9, Ex. 2.) On 12/19/25, Defendant provided Plaintiff's counsel with a courtesy notice of the deposition. (Kim Decl., ¶ 9, Ex. 4.) Neither Plaintiff nor his counsel appeared at the 12/22/25 deposition and Defendant again requested a Certificate of Non-appearance. (Kim Decl., ¶ 9, Ex. 6.) Code of Civil Procedure section 2025.450, subdivision (b)(2) provides: "The motion shall be accompanied by a meet and confer declaration under Section 2016.040, or, when the deponent fails to attend the deposition and produce the documents, electronically stored information, or things described in the deposition notice, by a declaration stating that the petitioner has contacted the deponent to inquire about the nonappearance."

		While counsel for Defendant contacted Plaintiff's counsel following Plaintiff's non-appearance on 11/24/25, there is no indication Defendant's counsel did so after the non-appearance on 12/22/25 as required by section 2025.450, subdivision (b)(2). As Defendant did not comply with Code of Civil Procedure section 2025.450, subdivision (b)(2), the Court DENIES Defendant Rosmar Rodriguez Gasco's motion to compel deposition.
2.	CAO VS. GENERAL MOTORS, LLC 2024-01409133	MOTION TO COMPEL DEPOSITION (ORAL OR WRITTEN) Plaintiff Derick Cao's Motion to Compel Defendant General Motors LLC to designate and produce for deposition, Defendant's Person(s) Most Qualified on all categories identified in Plaintiff's Notice of Deposition of the Person Most Qualified for Defendant and Demand to Produce Documents at Deposition is GRANTED in part. This hearing was continued due to the parties' inadequate meet and confer efforts. (ROA 156 [5/5/26 Minute Order].) The parties subsequently agreed to a deposition date of 6/10/26 and Plaintiff served an amended deposition notice. (ROA 172 [Song Decl., ¶¶ 3-4, Exs. 1-2, 4].) Since Plaintiff served an amended deposition notice for a future date, Defendant has not yet failed to comply with the operative deposition notice. The parties are ORDERED to proceed with the 6/10/26 deposition on the agreed upon categories of examination and document requests. If Defendant fails to appear or if Defendant appears and fails to answer questions and/or produce documents, Plaintiff's is to file the appropriate motion.
3.	BLATT VS. COUNTY OF ORANGE 2025-01481733	MOTION FOR PREFERENCE Plaintiff Eleanor Blatt's Motion for Trial Preference is GRANTED. Plaintiff seeks an order for trial preference pursuant to Code of Civil Procedure 36, subdivision (a). “(a) A party to a civil action who is over 70 years of age may petition the court for a preference, which the court shall grant if the court makes both of the following findings: [¶] (1) The party has a substantial interest in the action as a whole. [¶] (2) The health of the party is such that a preference is necessary to prevent prejudicing the party's interest in the litigation.” (§ 36(a).) The statute does not require “death or incapacity.” (<i>Fox v. Superior Court</i> (2018) 21 Cal.App.5th 529, 534 (<i>Fox</i>).) “Provided there is evidence that the party involved is over 70, all subdivision (a) requires is a showing that that party's ‘health ... is such that a preference is necessary to prevent prejudicing [her] interest in the